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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
2. Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 2074.6.30
3. Some Nepal Acts Amendment Act to Make them Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 14 of the year 2057

An Act Made to Provide for the Nepal Pharmacy Council

Preamble: Whereas it is desirable to provide for a Nepal Pharmacy Council to make the pharmacy profession systematic, scientific, and effective;

This Act is enacted by the Parliament in the twenty-ninth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter 1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Nepal Pharmacy Council Act, 2057".
(2) This Act shall come into force on such date as the Government of Nepal may appoint by notification in the Nepal Gazette This Act has been published as a notice in the Nepal Gazette by the Government of Nepal to come into force from the date 2058.6.8. 2. Definitions: Unless the subject or context otherwise requires, in this Act:-
 - (a) "Council" means the Nepal Pharmacy Council established pursuant to Section 3.
 - (b) "Chairperson" means the Chairperson of the Council.
 - (c) "Member" means a member of the Council and includes the Chairperson of the Council.
 - (d) "Drug" means a drug according to the Drug Act, 2035.
 - (e) "Pharmacist" means a person who has obtained at least a Master's Degree or an equivalent qualification in pharmacy from a recognized teaching institution.
 - (f) "Pharmacy Assistant" means a person who has obtained at least a Certificate or an equivalent qualification

in pharmacy from a recognized teaching institution.

(g) "Pharmacy Profession" means the profession of drug production, quality maintenance, inspection and recommendation of drug factories, selection of technology for storage and supply of produced drugs, supervision of supply, drug registration, and certifying that a drug is useful, quality, effective, and safe for consumption, and includes hospital pharmacy.

(h) "Registered Pharmacist" means a Pharmacist whose name is registered in the Register.

(i) "Registered Pharmacy Assistant" means a Pharmacy Assistant whose name is registered in the Register.

(j) "Register" means the Register prepared pursuant to Section 15.

(k) "Registrar" means the person appointed or designated pursuant to Section 26.

(l) "Subject Committee" means the Subject Committee formed pursuant to Section 32.

(m) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act.
Chapter 2

Establishment, Formation, Functions, Duties and Powers of the Council

3.

Establishment of Nepal Pharmacy Council: The Nepal Pharmacy Council is established to make the pharmacy profession systematic and scientific and to effectively operate it, and to make provisions for registration of names according to the qualifications of Pharmacists and Pharmacy Assistants. 4. Council to be an Autonomous Body: (1) The Council shall be an autonomous and corporate body with perpetual succession. (2) The Council shall have its own seal for all its activities. (3) The Council may, like an individual, acquire, use, sell, or otherwise dispose of movable and immovable property. (4) The Council may, like an individual, sue or be sued in its own name. 5. Formation of the Council: (1) The Council established pursuant to Section 3 shall consist of the following members: (a) A Pharmacist nominated by the Government of Nepal from amongst Pharmacists who have obtained at least a Master's Degree in pharmacy and have at least ten years of experience in the pharmacy profession ? Chairperson (b) One Pharmacist nominated by the Government of Nepal from amongst senior Pharmacist teachers of teaching institutions teaching pharmacy ? Member (c) President, Nepal Pharmaceutical Association ? Member (d) Two Pharmacists nominated by the Government of Nepal from amongst eminent Pharmacists engaged in drug production and distribution ? Member (e) One person nominated by the Government of Nepal from amongst the heads of professional organizations of Pharmacists registered according to the prevailing law ? Member (f) Two senior Pharmacists, including one woman, nominated by the Government of Nepal on the recommendation of the Council ? Member (g) Drug Administrator according to the Drug Act, 2035 ? Member (h) Registrar ? Secretary (2) The Council may, if it deems necessary, invite any expert in the pharmacy field to participate in the meeting of the Council. 6. Term of Office of Members: (1) The term of office of a nominated member of the Council shall be four years. Members whose term has expired may be re-nominated, subject to the other provisions of this Act. (2) If a vacancy occurs in the office of a member before the expiry of the term, such vacancy shall be filled for the remaining period through the procedure set forth in Sub-section (1) of Section 5. 7. Disqualification for Membership: The following persons shall not be eligible for nomination to the office of the Council:- (a) A non-Nepali citizen, (b) Whose name has been removed from the Register, (c) Who is adjudged insolvent for inability to pay debts, (d) Who has been convicted by a court of a criminal offense involving moral turpitude, and (e) Who is of unsound mind. 8.

Circumstances for Cessation of Membership: Membership of the Council shall be deemed to have ceased in the following circumstances:- (a) If disqualified pursuant to Section 7, (b) If a member resigns before the Chairperson and the Chairperson resigns before the Government of Nepal, (c) If a member remains absent from three consecutive meetings of the Council without giving a notice with cause to the Council, (d) Upon death, and (e) If a member nominated by the Government of Nepal is removed by the Government of Nepal before the completion of the term.

9. Functions, Duties and Powers of the Council: The functions, duties and powers of the Council shall be as follows:- (a) To prepare and implement necessary policies, plans and programs for conducting the pharmacy profession in a systematic and scientific manner. (b) To grant recognition to teaching institutions teaching pharmacy and to certificates and degrees conferred by such institutions. (c) To determine the standard regarding the curriculum, admission conditions and examination system of teaching institutions teaching pharmacy, and to demand necessary details regarding whether the determined standard has been maintained or not, and to revoke recognition, after completing the prescribed procedure, of certificates and degrees conferred by teaching institutions that do not maintain quality. (d) To determine the qualifications required to practice the pharmacy profession and to register, as prescribed, the names of Pharmacists and Pharmacy Assistants fulfilling the determined qualifications in the Register of the Council. (e) To remove, after completing the prescribed procedure, the name of a Registered Pharmacist or Pharmacy Assistant from the Register if such Pharmacist or Pharmacy Assistant violates or fails to comply with the prescribed professional code of conduct.

10.

Meetings and Decisions of the Council: (1) The meeting of the Council shall ordinarily be held once every three months, and the Chairperson may call additional meetings if deemed necessary. (2) The meeting of the Council shall be held at such date, time and place as determined by the Chairperson. (3) If more than fifty percent of the total number of members of the Council are present, the meeting shall be deemed to have attained a quorum. (4) The meeting of the Council shall be presided over by the Chairperson, and in the absence of the Chairperson, a member chosen by the members present from amongst themselves shall preside over the meeting. (5) The decision of the majority shall prevail in the meeting of the Council, and in case of a tie, the person presiding over the meeting shall have a casting vote. (6) The Secretary shall record the subjects discussed and the decisions made in the meeting of the Council in the decision book and obtain the signatures of the members present. (7) Other procedures relating to the meeting of the Council shall be as determined by the Council itself.

Chapter 3 Provisions Relating to Registration of Names

11. Not to Practice Pharmacy Profession without Registration: One year after the date of commencement of this Act, no person whose name is not registered in the Council shall practice the pharmacy profession.

12. Application for Registration: (1) A Pharmacist or Pharmacy Assistant wishing to get his/her name registered in the Council shall submit an application to the Council in the prescribed format. (2) A Pharmacist or Pharmacy Assistant engaged in the pharmacy profession at the time of commencement of this Act shall submit an application under Sub-section (1) for registration of his/her name in the Council within six months from the date of commencement of this Act. (3) A Pharmacist or Pharmacy Assistant submitting an application for registration under Sub-section (1) or (2) shall attach with the application the degree, certificate obtained from the teaching institution, and other documents, and the prescribed fee.

13. Scrutiny of Application: The Registrar shall conduct necessary scrutiny of the application received for registration pursuant to Section 12 and submit it to the relevant Subject Committee.

14.

Inquiry and Recommendation on Application: (1) The Subject Committee shall conduct necessary inquiry into the application submitted by the Registrar pursuant to Section 13. (2) If any matter is unclear during the inquiry under Sub-section (1), the Subject Committee may demand necessary evidence and documents from the concerned applicant to clarify such matters. (3) It shall be the duty of the concerned applicant to submit

the evidence and documents demanded under Sub-section (2) before the Subject Committee. (4) If, upon inquiry under Sub-sections (1), (2) and (3), the applicant appears eligible for registration of his/her name in the Council, the Subject Committee shall recommend to the Council. 15. Registration of Name: If the name of an applicant recommended for registration by the Subject Committee after necessary inquiry under Section 14 appears suitable for registration in the Council, the Council shall decide to register the name of such applicant in the Register of the Council prepared in the prescribed format. 16. Issue of Name Registration Certificate: (1) The Registrar shall register in the Register the name of an applicant whose name registration has been decided by the Council under Section 15 and issue a name registration certificate to the applicant in the prescribed format. (2) While preparing the Register under Sub-section (1), separate Registers shall be prepared for Pharmacists and Pharmacy Assistants. 17. Notification of Decision Not to Register: If the Council decides not to register the name of any applicant for name registration due to some reason preventing registration, the Registrar shall notify the concerned applicant of such decision. 18.

Removal of Name from Register: (1) The name of a Registered Pharmacist or Pharmacy Assistant shall not be removed from the Register except in the following circumstances:- (a) If he/she becomes of unsound mind, (b) If he/she is adjudged insolvent for inability to pay debts, (c) If a proposal to remove the name of such Pharmacist or Pharmacy Assistant from the Register on the charge of violating the prescribed professional conduct is passed by a two-thirds majority at the meeting of the Council, (d) If he/she is proven guilty by a court of a criminal offense involving moral turpitude, (e) If the name of an ineligible person has been registered due to fraud or mistake. (2) Before submitting a proposal for removal of the name of any Registered Pharmacist or Pharmacy Assistant from the Register on charges mentioned in Clauses (c) and (e) of Sub-section (1), the Council shall constitute an Inquiry Committee to conduct necessary inquiries regarding the charges against such person and submit a report. (3) The procedure to be followed by the Inquiry Committee constituted under Sub-section (2) while conducting inquiries shall be as prescribed. 19. Cancellation of Certificate: If the Council decides to remove the name of any Pharmacist or Pharmacy Assistant from the Register pursuant to Section 18, the Registrar shall remove the name of such person from the Register, cancel the certificate issued pursuant to Section 16, and notify the concerned person of such action. 20. Re-registration of Name: (1) If the name of any Registered Pharmacist or Pharmacy Assistant has been removed from the Register on charges mentioned in Clauses (a), (b) and (c) of Sub-section (1) of Section 18, the concerned person may, after at least one year from the date of such removal, submit an application to the Council under Section 12 for re-registration, stating a reasonable cause. (2) If an application for re-registration is submitted under Sub-section (1), the Council may decide to re-register the name of such applicant if it deems it reasonable to do so. (3) If the Council decides to re-register the name of the applicant under Sub-section (2), the Registrar shall re-register the name of such applicant in the Register and issue a certificate of re-registration to the applicant in the prescribed format. Chapter 4 Recognition of Academic Degrees and Certificates 21.

Recognition of Academic Degrees and Certificates: The Council shall recognize academic degrees and certificates conferred by any teaching institution in subjects related to the pharmacy profession. 22. May Request Details: (1) While granting recognition to any academic degree or certificate pursuant to Section 21, the Council may request from the concerned teaching institution the curriculum prescribed for such academic degree or certificate and the conditions prescribed for admission and other relevant details. (2) It shall be the duty of the concerned teaching institution to provide the necessary details requested by the Council under Sub-section (1). 23. Inspection of Examination: (1) For the purpose of granting recognition to any academic degree or certificate under Section 21, an official of the Council or an officer deputed by the Council may inspect the examination system conducted by any teaching institution recognized by the Council. (2) The

inspector deputed under Sub-section (1) shall not interfere in any way with the examination conducted by such teaching institution during the inspection. (3) The inspector inspecting the examination under Sub-section (2) shall prepare a report of the matters observed during the inspection of the examination system and submit it to the Council. 24. Withdrawal of Recognition: (1) If, upon considering the details received under Section 22 from the concerned teaching institution or the report received under Sub-section (3) of Section 23 regarding any academic degree or certificate recognized under Section 21, it appears that the curriculum, admission conditions and examination system determined by such teaching institution are not appropriate or adequate, the Council shall submit its report thereon to the Government of Nepal. (2) Upon receiving the report of the Council under Sub-section (1), the Government of Nepal may request an explanation from the concerned institution on the matter. (3) The Government of Nepal shall consider the explanation received from the concerned teaching institution as requested under Sub-section (2), and if any other matter needs to be inquired into in this regard, it may conduct necessary inquiries, and based on that, the Government of Nepal may give necessary directives to the Council to withdraw recognition of any academic degree or certificate conferred by such teaching institution after a specified date. (4) The Council shall make necessary decisions based on the directives given by the Government of Nepal under Sub-section (3). (5) If a decision is made to withdraw recognition of any academic degree or certificate under Sub-section (4), a notice thereof shall be published in the Nepal Gazette. Chapter 5 Provisions Relating to Functions, Duties and Powers of Chairperson and Registrar 25.

Functions, Duties and Powers of Chairperson: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Chairperson shall be as follows:- (a) To determine the priority of subjects to be discussed in the meeting of the Council, (b) To monitor and evaluate plans and programs conducted by the Council and to give necessary directives in that regard, (c) To conduct the business of the Council in an organized, effective and smooth manner, (d) To perform other functions as prescribed. 26. Registrar: (1) For the conduct of the daily administrative business of the Council, the Government of Nepal may appoint any Pharmacist as the Registrar of the Council or designate any Pharmacist in the service of the Government of Nepal to serve as the Registrar of the Council. (2) In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Registrar shall be as follows:- (a) To perform the general administration and management of the Council. (b) To manage or cause to manage the custody, control, and arrangement and maintenance of the Council's Fund and property. (c) To formulate the annual programs and plans of the Council and submit them to the Council. (d) To prepare the annual income-expenditure statement of the Council. (e) To implement the budget, plans and programs approved by the Council. (f) To make arrangements for internal and final audit of the Council. (g) To act as a liaison officer between the Council and Pharmacists and Pharmacy Assistants. (h) To perform or cause to perform other functions as directed by the Council. (i) To perform other functions as prescribed. (3) The remuneration and facilities of the Registrar shall be as prescribed. Chapter 6 Fund of the Council 27.

Fund of the Council: (1) The Council shall have its own separate Fund. (2) The Fund under Sub-section (1) shall consist of the following amounts:- (a) Amounts received from the Government of Nepal, (b) Amounts received as loans, donations, assistance, grants or charity from any domestic or foreign person, institution or government, (c) Amounts received from name registration and renewal of name registration in the Council, (d) Amounts received in lieu of services provided by the Council, (e) Amounts received from any other source. (3) Before receiving loans, donations, assistance, grants or charity from any foreign person, institution or government under Clause (b) of Sub-section (2), the Council shall obtain prior approval of the Government of Nepal. (4) The amounts received in the Fund of the Council shall be deposited by opening an

account in a commercial bank. (5) The operation of the Fund and account of the Council shall be as prescribed. 28. Accounts and Audit: (1) The accounts of income and expenditure of the Council shall be maintained as prescribed. (2) The audit of the Council shall be conducted as prescribed. (3) The Government of Nepal may, if it so desires, inspect or cause to be inspected the accounting work at any time. Chapter 7 Miscellaneous 29. Offense and Penalty: (1) If any person practices the pharmacy profession without registration in the Council contrary to Section 11, it shall be deemed to be an offense under this Act, and the person committing such offense shall be liable to be amended by Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 imprisonment for up to three years and a fine of up to thirty thousand rupees. (2) Any person who does any act contrary to this Act or the rules or regulations made under this Act, other than as mentioned in Sub-section (1), shall be liable to a fine of up to two thousand rupees. 30. Authority for Investigation, Inquiry and Prosecution: The authority or body for investigation, inquiry and prosecution of the offense under Section 29, and the procedure relating thereto, shall be as prescribed by the Government of Nepal by notification in the Nepal Gazette. 31.

Dissolution of the Council: (1) If it appears to the Government of Nepal that the Council has been unable to exercise the powers conferred upon it under this Act or the rules or regulations made under this Act, or has abused its powers, or has exercised powers beyond those conferred, or has failed to perform the duties it is required to perform under this Act or the rules made under this Act, the Government of Nepal may dissolve the Council. (2) If the Council is dissolved under Sub-section (1), the Government of Nepal may keep the Fund and property of the Council in its own custody and itself perform or cause to be performed, by constituting a committee, all the business to be performed by the Council until another Council is formed. (3) If the Council is dissolved under Sub-section (1), the Government of Nepal shall ordinarily form another Council under Section 5 within three months. (4) If another Council is formed under Sub-section (3), the Government of Nepal shall transfer the Fund and property kept in its custody under Sub-section (2) to such Council. 32. Subject Committee May be Formed: (1) The Council may, as required, form various Subject Committees. (2) The functions, duties, powers, and procedures of the Subject Committee formed under Sub-section (1) shall be as specified by the Council. 33. Allowance and Other Facilities of Members: The allowance and other facilities to be received by the members of the Council and the Chairperson and members of the Subject Committee shall be as prescribed. 34. Employees of the Council: (1) The Council may appoint employees as required. (2) The service, terms and facilities of employees appointed under Sub-section (1) shall be as prescribed. 35. Liaison with Government of Nepal: The Council shall maintain liaison with the Government of Nepal through amended by Some Nepal Acts Amendment Act to Make them Consistent with the Constitution of Nepal, 2075 the Ministry of Health and Population. 36. Power to Make Rules and Regulations: (1) The Council may make necessary rules to implement the objectives of this Act, and such rules shall come into force upon approval by the Government of Nepal. (2) The Council may, subject to this Act or the rules made under this Act, make regulations for the conduct of its daily business.